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TENTATIVE RULING

September 2, 2026

26SMCV02383 (The Pep Boys Manny Moe
& Jack of California LLC v. The New Tahitian LLC)

RELEVANT BACKGROUND

On April 28, 2026,
plaintiff The Pep Boys Manny
Moe & Jack of California LLC (Plaintiff) filed its complaint against
defendant The New Tahitian LLC (Defendant), alleging one cause of action for
declaratory relief.

This case arises from a
dispute regarding rights and obligations under a commercial lease entered on or
about June 22, 2021 (Lease), between Plaintiff, as tenant, and Defendant as
landlord, for the property located at 1723 S. Broadway, Santa Maria, CA 93454
(the Property). The Complaint requests the Court determine whether Defendant
exercised its right to terminate the Lease and the consequences under the Lease
of such termination.

INSTANT MOTION

On June 26, 2026, Defendant filed the instant
anti-SLAPP motion. Plaintiff filed an opposition, and Defendant filed a reply.

For the reasons set forth in detail
below, Defendant's motion is DENIED.

DISCUSSION

I.

ANTI-SLAPP

Under

Code of Civil Procedure section 425.16, a party may move to strike a cause of action that arises from any act of that person in furtherance of the person's right of petition or free speech, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim. (Code of Civ. Proc., § 425.16, subd. (b)(1).)

In

analyzing a section 425.16 motion, the court engages in a two-step process for determining whether an action is a strategic lawsuit against public participation. "First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity." (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67; See also *Healy v. Tuscany Hills Landscape & Recreation Corp.* (2006) 137 Cal.App.4th 1, 5; *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 278; Code Civ. Proc., § 425.16, subd. (e).)

Moving

parties have the initial burden to demonstrate that a cause of action is subject to a special motion to strike. (*Martinez v. Metabolife Inter. Ins.* (2003) 113 Cal.App.4th 181, 186; *Fox Searchlight Pictures Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 304.) If the defendant makes a threshold showing that the challenged cause of action is one arising from protected activity, the burden shifts to the plaintiff to establish a likelihood of prevailing on the complaint. (Code of Civ. Proc. § 425.16.) "The plaintiff must demonstrate the complaint is both legally sufficient and is supported by a prima facie showing of facts sufficient to sustain a favorable judgment if the evidence submitted by the plaintiff is given credit." (*Contemporary Services Corp. v. Staff Pro Inc.* (2007) 152 Cal.App.4th 1043, 1055, citing *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89.)

1. First Prong: Cause of Action

Arising from Protected Activity

First,

the moving party has the burden to demonstrate that act or acts of which the plaintiff complains were taken in furtherance of the defendant's right of petition or free speech. "An 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (Code of Civ. Proc., § 425.16, subd. (e).)

a. Notice to Vacate

"Although

an unlawful detainer action itself is protected activity under section 425.16, terminating a lease is not. [Citations.] A complaint arising out of or based on the dispute or conduct underlying the unlawful detainer action is not subject to a special motion to strike. " '[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.' [citation.] When, as in this case, the challenged lawsuit follows service of a three-day notice to quit, '[t]he pivotal distinction' is 'whether an actual or contemplated unlawful detainer action by a landlord (unquestionably a protected petitioning activity) merely 'preceded' or 'triggered' the tenant's lawsuit, or whether it was instead the 'basis' or 'cause' of that suit.' [Citation.]" (Copenbarger v. Morris Cerullo World Evangelism (2013) 215 Cal. App. 4th 1237, 1245, citing Clark v. Mazgani (2009) 170 Cal.App.4th 1281, 1286, Marlin v. Aimco Venezia, LLC (2007) 154 Cal.App.4th 154, 158, and Department of Fair Employment & Housing v. 1105 Alta Loma Road Apartments, LLC (2007) 154 Cal.App.4th 1273.)

The Court finds that Defendant has

not met its threshold burden of establishing that the declaratory relief cause of action arises from a protected activity. While the 30-day notice triggered the complaint, the underlying dispute concerns the parties' respective rights and obligations under the Lease, including whether non-operation constituted a breach of the lease. (Copenbarger, 215 Cal. App. 4th at p. 1240 ["We conclude that while the three-day notice [to cure or quit] might have triggered the complaint, the evidence in the record demonstrates the complaint was based on an underlying dispute over ... repair and maintenance obligations under the sublease and other unprotected activities"]; see Compl., generally.)

The basis of Plaintiff's declaratory judgment claim is the dispute between the parties regarding their rights and obligations under the Lease: whether Defendant elected to terminate the Lease pursuant to Article 14, or, alternatively, whether the 30-Day Notice was a constructive eviction and thereby triggered the termination of the Lease pursuant to Article 14. In either case, the 30-Day Notice and threats of eviction proceedings are manifestations that preceded the lawsuit, but not the basis thereof.

The Court agrees with Plaintiff that Copenbarger is analogous. That case involved a complaint by a sublessee against a sublessor and others after the sublessor served a 30-day notice to cure followed by a three-day notice to cure or quit. *Id.* at 1240-1242. The sublessee disputed its obligation under the sublease to repair improvements on the property and alleged that a 60-day notice was required under the sublease. (*Id.* at p. 1242.) The sublessee alleged counts for declaratory relief, breach of the sublease, and intentional interference with contract. (*Id.* at 1242.) The sublessor later filed a complaint for unlawful detainer. (*Id.* at p. 1242-1243.) The court in Copenbarger stated that, "[a]lthough an unlawful detainer action itself is protected activity under section 425.16, terminating a lease is not. A complaint arising out of or based on the dispute or conduct underlying the unlawful detainer action is not subject to a special motion to strike." *Id.* at 1245.

The Court is not persuaded by Defendant's argument that the 30-day notice is the basis of the declaratory relief action. As the Court of Appeal explained in *Marlin*, "Defendants have fallen victim to the logical fallacy *post hoc ergo propter hoc*—because the notices preceded plaintiffs' complaint the notices must have caused plaintiffs' complaint. The filing and service of the notices may have triggered plaintiffs'

complaint and the notices may be evidence in support of plaintiffs' complaint, but they were not the cause of plaintiffs' complaint." (Marlin, 154 Cal.App.4th at p. 158.)

Feldman is distinguishable because, in that case, the cause of action was predicated on an illegal eviction, whereas here the complaint seeks a declaration from the Court whether certain actions constituted a lawful termination of the underlying Lease and the consequences of such termination. In Feldman, the cross-complaint was based on the filing of the unlawful detainer action, service of the notice to quit, and statements made by the landlord's agent in connection with the eviction and unlawful detainer action. (Id. at p. 1483.) "These activities," the court stated, "are not merely cited as evidence of wrongdoing or activities 'triggering' the filing of an action that arises out of some other independent activity. These are the challenged activities and the bases for all causes of action, except possibly that of negligent misrepresentation." (Ibid.).

Lunada Biomedical v. Nunez (2014)
230 Cal.App.4th 459 is distinguishable because that case concerned a CLRA Notice and prelitigation demand letters. (Id. at p. 474.)

The Court does not consider the likelihood of success on the merits of the challenged causes of action because Defendant has not met its threshold burden.

Accordingly, Defendant's anti-SLAPP motion is DENIED.